

If the exception be not stated in writing, and tendered at the trial, it is *waived*, and the party shall not resort back to his exception, after a verdict against him. For perhaps if he had stood upon his exception, the other party need not have put the cause upon that point, but might have offered other testimony.⁸

A bill of exceptions to the charge of the court may be tendered at any time before the jury have delivered their verdict in open court.⁹

A bill of exceptions lies to the opinion of the court of common pleas, upon the trial of a feigned issue from the register's court.¹⁰ But does not lie to the opinion of the court in receiving or rejecting testimony on a motion for summary relief.¹¹ Neither is the refusal of the court to order a new trial a ground for a bill of exceptions.¹² If the judge in his charge expresses an opinion upon facts, which opinion is not warranted by the evidence, the remedy is by a motion for a new trial, and not by a bill of exceptions.¹³ No advantage can be taken by bill of exceptions of an erroneous opinion on a point of law immaterial to the issue; but the plaintiff in error, may assign error in an opinion on any point material to the issue, appearing on the bill of exceptions, although it was not particularised in stating the exceptions below.¹⁴

As a bill of exceptions is only to be made use of upon a writ of error, there can be no bill of exceptions where a writ of error will not lie.¹⁵ Although *ex rigore juris* the party shall have no advantage of his bill of exceptions, but on a writ of error; yet the court B. R. has sometimes, to prevent delay and expense, examined the matter before judgment.¹⁶

A bill of exceptions may be either tacked to the record or not: If it be not tacked to the record, it is necessary to set out the whole of the proceedings previous to the trial; but otherwise it begins with the proceedings after issue joined.¹⁷

8. 1 Salk. 288---2 Tidd's Pr. 788.

9. *Jones v The Insurance Co. of N.A.*
1 Binney 38.

10. *Vansant v Boilsau*, 1 Bin. 444.

11. *Shortz v Quigley*, 1 Bin. 222.

12. *Burd v Lee of Dansdale*, 2 Bin. 80.

13. *Girard v Gettig*, 2 Bin. 234.

14. *The Phoenix Insurance Company v Pratt*, 2 Bin. 308.

15. 1 Salk. 284. *Rex v Inhab Preston*,
Hil. 9 Geo. II.---Buller N. P. 316---1 Bk.

Rep. 679---Cowp. 501, & see 2 Leo. 236.

16. 2 Leo. 236.

17. See 2 Tidd's Pra. 788. For the

manner of stating the exception. 1 Lutw.

984---1 Salk. 284---3 Term. Rep. 27---

For the form of a bill of exception, either

separate, or attached to the record, see

Buller's N. P. 317, 318. For precedents

of a bill of exceptions, as to the legal ef-

fect of the whole of the evidence, see

Brownl. 129, *Money et al. v Leach*---

Buller's N. P. 317---and *Fabrigus v Mos-*

tyun---IX. Stat. Fr. 187---and for a prece-

dent of a bill of exceptions as to the legal

effect of evidence, in support of a parti-

cular fact, see Brownl. 131.

CONSPIRACY.

* 33 EDWARD I. STAT. 2. A.D. 1304.(E)

Who be conspirators, and who be champertors.

CONSPIRATORS be they that do confeder or bind themselves by oath, covenant, or other alliance, that every of them shall aid and bear the other falsely and maliciously to indite, or cause to indite,(2) or falsely to move or maintain pleas;(3) and also such as cause children within age to appeal men of felony, whereby they are imprisoned and sore grieved;(4) and such as retain men in the country with liveries or fees for to maintain their malicious enterprises; and this extendeth as well to the takers as to the givers. (6) This ordinance and final definition of conspirators was made and accorded by the king and his council in his parliament the thirty-third year of his reign.

20 Hen. 7. f. 11—Fitz. Barre, 4—Kel. 81—Fitz. Consp. 2, 4, 5, 10, 13, 14, 15, 16, 19, 21, 22, 25—8 Co. 37. V. N. B. 56—F. N. B. 117. H.—Rast. 122—2 Inst. 562—3 Inst. 143.

* 33 EDWARD I. STAT. 3. A.D. 1305.(F)

The punishment of such as commit champerty.

(4) OUR lord the king, at the information of *Gilbert Rowbery*, a clerk of his council, hath commanded, That whosoever will complain himself of conspirators, inventors, and maintainors of false quarrels, and partakers thereof, and brokers of debates, that *Gilbert Thornton* shall cause them to be attached by his writ, that they be before our sovereign lord the king, to answer unto the plaintiffs by this writ following:

II. The king to the sheriff greeting.—We command you, that if A. of, &c. make you secure of prosecuting his claim, then put by

(E) That part only of this statute is in force which relates to conspirators, and from that is to be excepted what relates to "*stewards or bailiffs of great lords.*" *Report of the Judges.*

(F) "That part only of this statute is in force which relates to conspirators." *Report of the Judges.*

a This *Gilbert Rowbery* who framed the writ of conspiracy, was one of the judges of the court of K. B. 2 Inst. 562.

gage and safe pledges G. of, &c. so that he be before us in the octave of St. John the Baptist, wheresoever we shall then be in England, to answer the aforesaid A. in a plea of trespass and conspiracy, according to the form of our ordinance in such case provided, so that the said A. may reasonably show that he thereupon ought to answer to him, and have you there the names of the pledges and this writ. Witness, &c.

The statute in the text purports to give a definition of conspiracy.¹ That each of the offences comprehended in that definition were conspiracies at the common law, there can be no doubt; but so likewise were others not comprised in the definition. This statute has always been held to be in affirmance of the common law: It creates no new offence; and, unfortunately, it gives but an imperfect definition of that which existed. It is a statute of the description referred to, by the learned author of *Observations on the ancient statutes*, when he remarks that—"The common law hath been weakened, by the legislature's making declarations against offences, which were criminal by the common law, when properly understood."

Acts of parliament it is probable were not unfrequently drawn by those who had not a legal education. But, however this might be, they were intended to make provision, or to enforce the laws against some prevalent grievance. We find, from the history of those times, that the offence of *champerty* had arisen to so alarming a height, as to require the utmost exertion of the legislature to repress it. It is provided against in the statute of Westminster the 1. c. xxv.² The statute 13 Edward 1. c. 3.³ subjected the champertor to three years' imprisonment. These, with other statutory provisions, were inadequate to the suppression of an offence which in those days had grown so rank; but which at the present day is only known by report: a prosecution of this kind never having taken place in latter times.⁴

And in respect to conspiracies, 'tis probable that the several kinds comprehended in the definition given in the act were those which at that period chiefly prevailed. But the great change which the lapse of ages has produced in the habits, manners, and pursuits of the people, has occasioned a corresponding change in the offences which infest society. Hence the impracticability of declaring by statute any particular branch of the common law.—Such is the variety of occurrences which from time to time take place in society: crimes and offences are so infinitely diversified

1. The last section gives a definition of *Champerty*; but there appears no original text to warrant this which is found in the english edition of the statutes. It seems probable that it was added by some reader to explain what followed: the next stat-

ute being entitled the statute of *Champerty*. 2 Reeve Eng. law 243.

2. 1 Ruff. 50.

3. Ib. 150.

4. Obs. on the Stat. 137.